

For the foregoing reasons, Defendants' demurrer is **SUSTAINED IN ITS ENTIRETY WITH LEAVE TO AMEND.**

Plaintiffs have 15 days from the date of entry of this order to file and serve any amended pleading.

10. 9:00 AM CASE NUMBER: C25-03334
CASE NAME: DAVID CHEW VS. VETERINARY EMERGENCY GROUP,
***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S COMPLAINT**
FILED BY: VETERINARY EMERGENCY GROUP,
TENTATIVE RULING:

Before the Court is Defendants Veterinary Emergency Group ("VEG"), Melissa, Ogg, D.V.M., and Rosella To, D.V.M.'s (collectively "Defendants") motion to strike. The motion to strike relates to Plaintiffs David Chew and Jean Lee's (collectively "Plaintiffs") Complaint for (1) negligence (veterinary malpractice); (2) trespass to chattels; (3) breach of bailment; (4) breach of contract; (5) intentional infliction of emotional distress; (6) intentional misrepresentation; and (7) fraudulent concealment.

Defendants move to strike Plaintiffs' claims for (1) punitive/exemplary damages; and (2) emotional distress/general pain-and-suffering damages. They do so on the grounds that (1) Plaintiffs' claims for general/emotional distress are not recoverable by law; and (2) Plaintiffs' punitive damage claim under Civil Code section 3340 is defective.

Plaintiff opposes Defendants' motion to strike, arguing that general/emotional distress damages are supported by law, punitive damages under Civil Code section 3340 are properly pled and supported by law, and determining whether the facts support a claim of gross negligence is a premature factual determination.

Defendant's motion to strike is **GRANTED IN ITS ENTIRETY WITH LEAVE TO AMEND.**

Plaintiffs have 15 days from the date of entry of this order to file and serve any amended pleading.

I. Factual Allegations

This case arises out of a dispute over allegedly negligent veterinary medical care.

Plaintiffs David Chew and Jean Lee were the owners of an 11-year-old French Bulldog named Zoë. (Initial Complaint ("Compl.") at 2:5-6.) On November 13, 2024, Zoë presented to Veterinary Emergency Group in San Ramon, California, for labored breathing. (*Id.* at 3:5-6.) Plaintiffs' parents were pet sitting Zoë at the time of her presentation to VEG as Plaintiffs were out of the country, however Plaintiffs returned quickly upon learning of Zoë's condition. (*Id.* at 3:9-11.) Despite initially being out of the country, Plaintiffs were in direct contact with veterinary staff at VEG such that they made all care decisions. (*Ibid.*)

Upon her arrival to VEG, staff allegedly diagnosed Zoë with possible pneumonia, assessed her condition as "critical," and recommended euthanasia. (Compl. at 3:6-9.) VEG staff allegedly communicated to Plaintiffs that there was fluid in Zoë's lungs of an unknown nature, though it was "likely a recurrence of her prior cancer." (*Id.* at 3:12-14.) Plaintiffs allege that this presumption was

later proved to be false. (*Ibid.*)

Plaintiffs allege that “[i]n coordination with ZOË’s primary veterinary team, it was determined that ZOË should be transferred from VEG to a specialty hospital as was medically appropriate for her condition.” (Compl. at 3:15-17.) The Complaint does not clarify whether Defendants were involved in the “coordination” with Zoë’s primary veterinary team, but states that “[d]espite this knowledge and discussion, VEG staff, including TO and OGG, strongly discouraged the transfer and refused to facilitate it, stating that ZOË would not survive transfer.” (*Id.* at 3:17-18.)

Zoë spent a week at VEG, during which time Plaintiffs repeatedly expressed concerns about the care she was receiving. (Compl. at 3:19-20.) Among the concerns they expressed was that they believed Zoë’s bloodwork results suggested that doubling her intravenous fluid intake was contraindicated. (*Id.* at 3:20-22.) Plaintiffs state that they are not trained in veterinary medicine, nor do they have any medical knowledge. (*Id.* at 11:5-6.) Plaintiffs allege that their concerns were met with dismissiveness from VEG, Dr. Ogg, and Dr. To. (*Id.* at 3:23-24.)

Plaintiffs further allege that, “[a]fter consistent requests from Plaintiffs, ZOË’s primary veterinary team, and oncologist, the attending veterinarian Dr. TO, began contacting other facilities for transfer.” (Compl. at 3:25-28.) Plaintiffs allege that Defendants “purposely misled” transfer hospitals about Zoë’s status, characterizing her as too unstable for transfer. (*Id.* at 3:27-28, 9:10-12.)

Plaintiffs allege that when Zoë was eventually transferred, the veterinarians at the transfer hospital diagnosed her with fluid overload, water retention, and kidney damage, all of which they allegedly attributed to excessive intravenous fluid administration at VEG. (Compl. at 4:3-6.)

Zoë was ultimately unable to recover from her illness and died. (Compl. at 4:7-8.)

Plaintiffs filed suit in this case on November 12, 2025.

II. Meet and Confer

Prior to filing a motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading in an attempt to informally resolve the objections raised therein. (Code Civ. Proc., § 435.5(a).) Defendants met their statutory burden when they met telephonically with Plaintiffs’ counsel on February 11, 2026, to discuss the substance of Defendants’ objections as further stated in the instant motion. (Declaration of Lauren B. Fazio in Support of Defendants Veterinary Emergency Group, Melissa Ogg, DVM, and Rosella To, DVM’s Motion to Strike Plaintiffs’ Complaint (“Fazio MTS Dec.”) ¶ 2.)

III. Legal Standard

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof...” (Code Civ. Proc., § 435(b)(1).) The court may, upon a motion made pursuant to § 435 “(a) Strike out any irrelevant, false, or improper matter inserted in any pleading[,] [or] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) Irrelevant matter includes a demand for judgment requesting relief not supported by the allegations of the complaint.”

(Code Civ. Proc., § 431.10(b)(3).) A motion to strike may be used to attack a prayer for damages where the recovery sought is not legally available on the facts as pleaded.

“In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) Pleadings are to be liberally construed with a view to substantial justice between the parties. (Code Civ. Proc., § 452.)

“An amendment should be allowed where the defect, though one of *substance*, may possibly be cured by supplying omitted allegations, and the plaintiff has not had a fair opportunity to do so...” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 168.) Where the defect raised by a motion to strike is reasonably capable of cure, leave to amend should be granted. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.) “It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader’s action.” (*Id.* at 11:46-1147.)

A motion to strike reaches only matters appearing on the face of the pleading or from matters of which the Court may take judicial notice. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683; Code Civ. Proc., § 437(a).)

In opposing this motion, Plaintiffs rely in part on factual assertions concerning Defendants’ advertising and public representations drawn from material outside the Complaint. (Opposition filed re: Motion to Strike Plaintiffs’ Complaint (“Opp.”) at 6:15-21 & fn. 1.) That material is not alleged in the Complaint nor is it subject to judicial notice. The Court has confined its review to the allegations of the Complaint and matters properly subject to judicial notice. Accordingly, the factual assertions concerning Defendants’ advertising and public representations have not been considered in ruling on this motion.

IV. Analysis

A. General and Emotional Distress Damages

Defendants move to strike Plaintiffs’ request for emotional distress and other general damages on the ground that such damages are not recoverable for negligent injury to an animal, which California law treats as personal property.

Under California law, a dog is personal property. (Civ. Code, § 655; *Scharer v. San Luis Rey Equine Hospital, Inc.* (2012) 204 Cal.App.4th 421, 427.) The measure of damages for negligent injury to personal property does not ordinarily include compensation for the owner’s emotional distress. The general principle was stated by the Supreme Court in *Erlich v. Menezes* (1999) 21 Cal.4th 543. There, the court held that emotional distress damages are not recoverable for negligent breach of contract that causes only economic injury or property damage, absent the breach of an independent duty arising from tort principles. (*Id.* at 551-554.) Even where an independent duty is breached, recovery for emotional distress is available only where the defendant has assumed a duty in which the plaintiff’s emotional condition is an object of the undertaking, or where the breach threatened

personal physical injury rather than mere damage to property or financial interests. (*Id.* at 554-556.)

McMahon v. Craig (2009) 176 Cal.App.4th applies these principles in the veterinary context. There, the court held that a veterinarian owes no duty to safeguard the emotional tranquility of a pet's owner, that the veterinarian's services are directed to the animal, and that any resulting emotional harm to the owner is indirect. (*Id.* at 1509-1514.) The court reached this conclusion notwithstanding allegations in that case that both the owner and a friend of the owner, who wrote a letter to the veterinarian on the owner's behalf, had communicated the owner's deep devotion to the dog, such that the veterinarian was aware of the owner's significant attachment. (*Id.* at 1507.) Awareness of the owner's bond with the animal did not give rise to a duty to protect the owner's emotional tranquility, nor did it convert veterinary services rendered to the animal into an undertaking directed at the owner's emotional wellbeing. (*Id.* at 1513-1514.) Accordingly, a pet owner cannot recover damages for emotional distress or loss of companionship based on a veterinarian's negligent treatment of the animal, even where the treatment results in the animal's death. (*Id.* at 1506, 1509-1515.)

Plaintiffs do not dispute that animals are personal property under California law, but contend that emotional distress damages are available where the conduct goes beyond negligence into intentional tort. (Opp. at 5:4-8.) That is a correct statement of the limited exception, but it does not aid Plaintiffs on the present pleading. The authorities recognizing recovery for emotional distress in connection with companion animals cited by Plaintiffs each rested on intentional or malicious conduct, or an undertaking in which the owner's emotional wellbeing was itself the object. (*Ibid*; *Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590; *Levy v. Only Cremations for Pets, Inc.* (2020) 57 Cal.App.5th 203; *Berry v. Frazier* (2023) 90 Cal.App.5th 1258.)

In *Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, recovery rested on an intentional, wrongful physical assault on the animal by a third party. In *Levy v. Only Cremations for Pets, Inc.* (2020) 57 Cal.App.5th 203, the defendant's undertaking, the cremation and return of a pet's cremains, was one in which the owner's emotional wellbeing was the very service being provided. To the extent that Plaintiffs rely in their opposition on VEG's advertising materials to characterize the veterinary engagement here as a comparable undertaking directed at their emotional wellbeing, that material lies outside the four corners of the Complaint and has not been considered, as noted *ante*. (Opp. at 6:15-21 & fn. 1.) And in *Berry v. Frazier* (2023) 90 Cal.App.5th 1258, the claim rested on a veterinarian's intentional misrepresentations made to the owner to obtain consent to a procedure known by the veterinarian to cause extreme suffering. These authorities are consistent with *Erlich* and *McMahon*: emotional distress damages are unavailable for negligent veterinary care, and become available only where an intentional tort is adequately pleaded or where emotional tranquility was an object of the undertaking.

As pleaded, the Complaint does not bring this case within any of those exceptions. The gravamen of the Complaint is negligent veterinary treatment: disputed decisions regarding diagnosis, fluid administration, monitoring, the recommendation of euthanasia, and resistance to transfer. As set forth in the concurrently issued ruling on Defendants' demurrer, each of Plaintiffs' intentional tort causes of action, trespass to chattels, intentional infliction of emotional distress, intentional

misrepresentation, and fraudulent concealment, has been sustained on demurrer. There is accordingly no operative intentional tort to support a request for emotional distress damages. Nor does the Complaint allege, within its four corners, facts establishing that the veterinary engagement was one in which Plaintiffs' emotional tranquility was an object of the undertaking, as distinct from the medical care of the animal.

Plaintiffs' reliance on the evolving legal treatment of companion animals is unavailing. Neither Assembly Bill 2274 and its provision concerning the care of a pet in a custody proceeding, nor the out-of-state trial court decision on which Plaintiffs rely for the proposition that a dog may be regarded as a member of the family (*see DeBlase v. Hill* (Sup.Ct.) 2025 NY Slip Op 25156 [87 Misc.3d 1139, 239 N.Y.S.3d 770]; *Opp.* at 12-19.), alters this result. The settled California rule governs here: for the purposes of tort recovery, an injured animal is personal property, and the owner may not recover emotional distress damages for its negligent injury. (*Scharer, supra*, 204 Cal.App.4th at 427-428; *Erlich, supra*, 21 Cal.4th at 554-556.)

In striking these allegations, the Court does not disturb Plaintiffs' request for economic and property-based damages. The measure of damages for negligent injury to an animal as personal property may include such items as the reasonable and necessary costs of veterinary care and the animal's value, and nothing in this ruling limits Plaintiffs' ability to seek those damages. What is stricken is the request for noneconomic damages, that is, damages for Plaintiffs' own emotional distress and loss of companionship, which are not recoverable on the present pleading for the reasons stated above.

Because the availability of emotional distress and general damages depends on the adequacy of an intentional tort claim that is not presently operative, the challenged damages allegations are properly stricken. As with the demurrer, however, and because this is Plaintiffs' Initial Complaint, leave to amend is granted. The availability of emotional distress damages will depend on whether Plaintiffs are able to replead a viable intentional tort, or otherwise to allege facts bringing the claim within a recognized exception to the rule barring such damages for negligent injury to property.

Accordingly, Defendants' motion to strike Plaintiffs' prayer for emotional distress and general damages is **GRANTED WITH LEAVE TO AMEND**.

B. Punitive/Exemplary Damages Under Civil Code Section 3340

Civil Code section 3340 provides that exemplary damages may be given "[f]or wrongful injuries to animals being subjects of property, committed willfully or by gross negligence, in disregard of humanity." (Civ. Code, § 3340.) Defendants move to strike Plaintiffs' prayer for exemplary damages under Civil Code section 3340 on two grounds: (1) that the prayer is not tethered to a viable cause of action, and (2) that the conduct alleged does not meet the statutory standard. (Memorandum of Points and Authorities in support of Defendants' Motion to Strike Plaintiffs' Complaint ("MTS") at 7:5-12.)

i. The Section 3340 Prayer Is Not Tethered to a Viable Cause of Action

Plaintiffs' request for exemplary damages is subject to being stricken on two independent grounds.

First, the request is structurally defective. There is no independent cause of action for a violation of Civil Code section 3340; a request for exemplary damages under section 3340 must be asserted in connection with a substantive cause of action that supports it. (*Berry, supra*, 90 Cal.App.5th at 1276.) Here, rather than attach the prayer to a particular cause or causes of action, the Complaint sets out a freestanding section titled “ADDITIONAL FACTS IN SUPPORT OF EXEMPLARY DAMAGES PURSUANT TO CIVIL CODE SECTION 3340,” followed by a prayer for punitive damages, without tying the request to any of the seven causes of action. (Compl. at 12:26-13:19.) A request for exemplary damages pleaded in this freestanding manner, untethered to any specific cause of action is improper and would be subject to being stricken on that basis even had the demurrer been overruled. Any amended pleading must connect the request to the specific cause or causes of action alleged to support it.

Second, and independently, the demurrer has been sustained with leave to amend as to all seven causes of action, as set forth in the Court’s concurrently issued demurrer ruling. Accordingly, there is no operative cause of action to which the exemplary damages request could attach in any event. While a Civil Code section 3340 request premised on gross negligence may, in an appropriate case, be tied to a negligence claim, and a request premised on intentional wrongdoing to a viable intentional tort, no such claim is presently operative.

In any amended complaint, Plaintiffs must both replead a viable supporting cause of action and affirmatively connect the Civil Code Section 3340 request to that action.

i. The Conduct Alleged and the Section 3340 Standard

Although the tethering defect is itself a sufficient basis to strike the request, the Court engages with Defendants’ substantive challenge as well, because it bears on any amended pleading.

Civil Code section 3340 authorizes exemplary damages for wrongful injuries to animals “committed willfully or by gross negligence, in disregard of humanity.” (Civ. Code, § 3340.) Gross negligence means the want of even scant care or an extreme departure from the ordinary standard of conduct. (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1185-1186; *City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 754.) Whether conduct amounts to gross negligence is ordinarily a question of fact. (*City of Santa Barbara, supra*, 41 Cal.4th at 767.) The question presented is whether the facts pleaded are sufficient to invoke the standard.

The principle that a request for exemplary damages must be supported by pleaded facts rather than conclusory characterization applies here, just as it does for exemplary damages under Civil Code section 3294. (*See Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 [addressing exemplary damages under Civ. Code § 3294; the mere allegation of wrongful conduct is insufficient, and “facts must be alleged in the pleading to support such a claim”].) That principle is properly enforced by a motion to strike. (*Id.* at 168.) A motion to strike tests whether facts actually pleaded support the relief sought; it is not satisfied by conclusory characterizations, “ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (*Clauson, supra*, 67 Cal.App.4th at 1255.) Labeling conduct “grossly negligent,” willful,” or in disregard of humanity” does not supply them.

Here, the Complaint alleges that it is “grossly negligent (if not willful conduct)” to promise overnight

care and collect payment without providing it, and that Defendants' acts were "so far below standard industry practice as to be unconscionable." (Compl. at 13:6-12.) Stripped of these characterizations, the facts pleaded – the recommendation of euthanasia, the advice against transfer, the administration of intravenous fluids, the dismissal of Plaintiffs' concerns, and the communications regarding Zoë's condition – describe disputed clinical judgment. As pleaded they do not set forth ultimate facts establishing an extreme departure from the standard of care undertaken in disregard of humanity.

Plaintiffs' reference to an exemplary damages award their counsel represents to have obtained in another matter (Opp. at 8:8-12) is unavailing as it is not authority, has no precedential value, and does not bear on the sufficiency of the allegations in this Complaint.

The Court does not hold that exemplary damages under Civil Code section 3340 are categorically unavailable on the facts of this case, nor does it resolve whether the conduct alleged was grossly negligent, which is ordinarily a question of fact. (*City of Santa Barbara, supra*, 41 Cal.4th at 767.) It holds only that the allegations as presently pleaded are conclusory and do not set forth ultimate facts sufficient to support the statutory standard of wrongful injuries to animals "committed willfully or by gross negligence, in disregard of humanity." (Civ. Code, § 3340.)

Because this is Plaintiffs' Initial Complaint and the deficiencies may be curable, leave to amend is granted on both the tethering and sufficiency grounds. Accordingly, Defendants' motion to strike Plaintiffs' prayer for exemplary damages under Civil Code section 3340 is **GRANTED WITH LEAVE TO AMEND**.

V. Conclusion

For the foregoing reasons, Defendants' motion to strike Plaintiffs' prayers for punitive/exemplary damages and emotional distress/general pain-and-suffering damages is **GRANTED IN ITS ENTIRETY WITH LEAVE TO AMEND**.

Plaintiffs have 15 days from the date of entry of this order to file and serve any amended pleading.

11. 9:00 AM CASE NUMBER: C26-01406
CASE NAME: RANDY MONTESANO VS. DAWN GUZMAN

*HEARING ON MOTION IN RE: LEAVE TO PROCEED ANONYMOUSLY; REQUEST FOR INTERIM
PROTECTIVE RELIEF PENDING HEARING
FILED BY: GUZMAN, DAWN RENEE

TENTATIVE RULING:

Summary

The Court has reviewed Defendant Dawn R. Guzman's Motion to Proceed Anonymously. For the reasons set forth herein, the Motion is **denied** as moot.

Background

This matter comes before the Court on Defendant's third attempt to seek identical relief. On May 20, 2026, Defendant submitted an *ex parte* application requesting permission to proceed under